purported settlement agreement in this matter when the case has been dismissed and there is no basis for setting aside that dismissal.

The Court does not consider the new evidence contained in the Reply. Motion is denied.

3.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2404824	RIVERA vs FORD MOTOR COMPANY	MOTION FOR ATTORNEYS' FEES

Tentative Ruling:

Moving party: Plaintiff Wendy Rivera

Responding party: Defendant Ford Motor Company

This is a lemon law case. On September 23, 2022, Wendy Rivera aka Wendy Noemi Rivera-Ventura ("Plaintiff") purchased a 2022 Ford Explorer ("Subject Vehicle") which was manufactured and/or distributed by Defendant Ford Motor Company ("Defendant" or "Ford"). In connection with the purchase, Plaintiff received a Basic Warranty that included bumper-to-bumper coverage for defects in materials and workmanship for the earlier of 36 Months (3 Years) or 36000 miles, a Drivetrain/Powertrain Warranty that covered defects in materials and workmanship for the earlier of 60 Months (5 Years) or 60000, and a California Emissions Warranty that covered defects in materials and workmanship in emissions parts for the earlier of 7 years or 70,000 miles. The Subject Vehicle developed nonconformities during the warranty period. Despite sufficient repair attempts, Ford was unable to cure the defects. Ford failed to repurchase the Subject Vehicle in violation of the Song Beverly Consumer Warranties Act ("Song Beverly Act").

On August 28, 2024, Plaintiff filed the Complaint against Ford and Warren Anderson Ford. The Complaint asserts two causes of action for: (1) Violations of the Song Beverly Act--Breach of Express Warranty against GM; and (2) Negligent Repair..

Plaintiff now moves for attorney's fees in the amount of $24,765.00 and costs in the amount of $3,761.52 under the fee-shifting provision of the Song Beverly Act. Plaintiff argues that the hours were reasonable, and all duplicative hours have been removed from billing records. Plaintiff argues that staffing with several attorneys was reasonable because each attorney specializes in unique aspects of litigation. Plaintiff invites defense counsel to produce records for comparison. Plaintiff argues that the rates are reasonable based on the nature and complexity of the case and skill of counsel. Plaintiff requests a 1.5 multiplier based on contingency risk. Plaintiff argues that the costs are reasonable.

Defendant argues that the rates requested are excessive for Riverside County and should be reduced to $275 for non-partners and $350 for partners based on the Real Rate Report. Defendant argues that all hours incurred by Castillo Law must be stricken because the attorneys were not licensed in California. Defendant argues that Plaintiff should not recover fees in connection with the discovery motions because the Court already addressed the issue of sanctions. Defendant argues that the fees for the PMQ deposition should be stricken since Plaintiff knew in advance that the PMQ was not available. Defendant argues that the fees for the present Motion are excessive. Defendant argues that Plaintiff should not recover for internal communications or administrative work. Defendant argues that the case was overstaffed. Defendant argues that the enhancement is not warranted. Defendant argues that the costs are excessive and unsubstantiated.

In her Reply, Plaintiff withdraws the request for fees for Grenville Pridham. Plaintiff argues that it provided sufficient evidence to support the rates requested, and Defendant has not produced sufficient evidence that the rates are excessive. Plaintiff argues that the number of attorneys was reasonable. Plaintiff argues that the unlicensed attorney was billed as a law clerk. Plaintiff argues that each of Defendant's challenges to specific tasks lack merit. Plaintiff argues that the costs are reasonable under the Song Beverly Act, and she was not required to provide invoices with the Memorandum.

<u>Motion for Attorneys' Fees</u>:

Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code §1794(d).) Here, on December 30, 2025, Ford served Plaintiff an Offer to Compromise pursuant to the California Code of Civil Procedure § 998 for the sum of $100,000.00, which Plaintiff accepted the same day. (Decl. of Pisciotta, ¶ 2, Ex. A.) As such, Plaintiff is the prevailing party and is entitled to reasonably incurred fees and costs.

<u>Lodestar</u>:

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (Id at 998.) The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Verified billing records constitute prima facie evidence that the fees were reasonable. (*Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 682.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.) The trial court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case, including the complexity of the case, procedural demands, skill exhibited, and results achieved, the amount of actual time expended and the monetary charge being made for the time expended are reasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.) If the time expended or monetary charge is not reasonable, the court should reduce the amount. (*Ibid*.)

Plaintiffs claim a lodestar total of $17,920.00 based on 37.6 hours.

Billing Rates:

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.) In determining the value of the legal service, courts consider several factors, including, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (*PLCM Group, Inc., supra,* 22 Cal. 4th at 1096.)

Plaintiff requests hourly rates ranging from $395 for a law clerk to $600. Some of these rates appear somewhat high for Riverside County. However, Defendant's reduced rates of $275 for non-partners and $350 for partners are also significantly lower than rates typically awarded for lemon law actions. Thus, the reasonable rates are adjusted as follows, reflecting the experience and skill of counsel and contingency risk:

Name	Year licensed	Billed rate	Reduced rate	No. of hours	Total fee reduction
Kirnos	2009			NA	
Lopez	2018	$450	$425	4.6	$1,995
Lopez	2018	$400	$400	.4	$160
Cohen	2017	$515	$425	4.8	$2,040
Meagle	2019	$400	$400	6.6	$2,640
Reed	2009	$495	$495	2	$990
Cutler	2009	$550	$525	2.2	$1,155
Pridham	1985	$600	NA	NA	
Higgins	2003	$600	$575	6	$3,450
Donnelly	1995	$500	$500	4.8	$2,400
Robles	Law Clerk	$295	$200	4.4	$880
Total				35.8	$15,710

Hours Incurred:

Plaintiff claims that counsel billed 37.6 hours on this case. Counsel produced extensive billing records showing the time for each tasks. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in the trial court forfeits the claim on appeal." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

Defendant argues that the fee is excessive because the case was overstaffed. "[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 39.) To remedy this excessive billing, the court may cut certain attorneys from the lodestar analysis entirely. (Id at 40.) The court must determine whether the staffing choices resulted in excessive or duplicative billing regardless of the number of attorneys. (*Mo. Rahman v. FCA Us LLC* (C.D. Cal., 2022) 594 F. Supp. 3d 1199, 1205-1206.) In this case, although ten attorneys worked on the case, there does not appear to be any significant or obvious stacking or duplicative work. Moreover, Plaintiff withdraws 1.8 hours ($1,080) incurred by Attorney Pridham.

Defendant argues that fees requested in connection with Plaintiff's discovery motions should be stricken because the Court already awarded fees for the Motion to Compel Further Responses to Requests for Production and denied fees in connection with the Motion to Compel Further Responses to Special Interrogatories. Awarding additional fees for the discovery motions would undermine the Court's prior determination as to the reasonable amount of sanctions and justification for the motions. Based on the adjusted rates above, **the lodestar is reduced by $3,365.**

Defendant argues that fees incurred in taking the PMQ deposition should be stricken because Plaintiff was informed in advance that the PMQ was unavailable. However, the non-appearance fees are reasonable.

Defendant argues that the 4.90 hours for the present fee motion, including 3 hours for anticipated events (i.e. reviewing opposition and drafting reply) are excessive. The Opposition includes several specific challenges that require response. Moreover, because Defendant demanded additional evidence regarding the costs and expenses, new evidence was submitted with the Reply which requires a continuance as explained below. Therefore, the future hours are reasonable.

Based on the above, the lodestar total is **reduced to $12,345.00.**

<u>Multiplier</u>:

Plaintiff requests 1.5 multiplier. The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery." (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) A contingent fee is generally higher than a fee for the same legal services paid as they are performed to compensate for the loan of those services and risk of loss. (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1132.) "However, although taking a case on a contingent fee basis may support an award of a multiplier, it does not compel, it." (*Save*

Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal. App. 4th 1179, 1188.)

The request for the multiplier is based on the contingency risk and complexity of the case and skill of counsel. However, the contingency risk was reduced due to the fee-shifting provision of the Song Beverly Act. Moreover, the contingency risk, as well as the skill and experience of counsel, was accounted for in the billing rates. Thus, adding an enhancement based on the same factors constitutes double counting. (*Ketchum v. Moses* (2000) 24 Cal. 4th 1122, 1142.) The request for multiplier is denied.

<u>Litigation Costs and Expenses</u>:

"Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civil Code §1794(d).) The additional term "expenses" was included in this section to cover items that would not otherwise be included in the detailed statutory definition of "costs" under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

"If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs." (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) The prevailing buyer bears the burden of showing that costs or expenses were (1) reasonably necessary to the conduct of litigation and (2) reasonable in amount. (*Ibid*.)

On April 21, 2026, Plaintiff filed the Memorandum of Costs seeking a total of $3,761.52 in costs. Defendant argues that the costs are excessive and unsubstantiated but does not object to any specific items. Nor has Defendant filed a motion to tax costs. Defendant argues that it cannot determine which costs are reasonable without substantiating evidence. While Plaintiff was not required to provide such evidence until the specific items are challenged, Plaintiff produced additional records in support of the Reply. The Court continued the hearing to allow Defendant to respond to the new evidence and challenge any of the listed costs as unreasonable. On August 21, 2026, Defendant filed a supplemental declaration indicating that it does not oppose the requested costs. As such, **Plaintiff is awarded the full amount of $3,761.52.**

Fees and Cost ordered payable within 30 days of this order.